AI Playbook and Toolkit for Public Health Departments

Tribal Consultation and Data Sharing Agreements for AI Projects

GOV 130

This module builds on introductory Tribal sovereignty and Indigenous Data Governance training by focusing on practical consultation and agreement-building for AI projects. It is intended for public health staff who may plan, support, evaluate, or govern AI projects involving Tribal Nations, Tribal citizens, American Indian and Alaska Native data, or data that may affect Tribal communities. The module emphasizes that AI projects should not begin with data extraction, vendor selection, platform testing, or model development before appropriate Tribal engagement and approvals occur. Because every Tribal Nation is a sovereign government, there is no single national template that can substitute for Tribal law, Tribal policy, Tribal research review, Tribal IRB requirements, or formal consultation. This module provides a structured way to identify what must be discussed, documented, and agreed upon. It is not legal advice and should be adapted through Tribal partnership, agency counsel, privacy review, data governance, and leadership approval.

Level	Intermediate
Primary track	Governance and Security
Appears in tracks	governance-security

Learning Objectives

- Explain why Tribal consultation and data sharing agreements are essential for AI projects involving Tribal Nations or AI/AN data.
- Identify data, geography, linkage, and platform risks that may affect Tribal sovereignty.
- Describe key topics that should be addressed in a Tribal data sharing agreement for an AI project.
- Apply the CARE Principles to an AI project planning scenario.
- Create a consultation and agreement planning checklist for a proposed AI use case.

Module Overview

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Jurisdiction and Agency Policy Note

This national-level module is intended for training and planning purposes. It does not replace legal, privacy, procurement, civil rights, records, cybersecurity, Tribal consultation, labor relations, human resources, or agency policy review. Learners should confirm applicable requirements in their own jurisdiction and organization before implementing AI-supported workflows.

Why This Topic Matters for Public Health AI

AI projects can create new risks for Tribal data because models may combine, infer, summarize, or reuse data in ways that were not anticipated when data were collected. Health data that appear administrative or de-identified may still reveal sensitive information about a Tribal community, small population, place, service, condition, or historical experience. AI can also produce outputs that misinterpret Tribal context, reinforce stereotypes, or support decisions without Tribal authority or community benefit.

Tribal consultation and data sharing agreements help ensure that AI projects respect sovereignty, self-determination, and community priorities. They also help public health agencies understand whether a proposed use is acceptable, what approvals are required, what data may be used, where data may be stored, who may access outputs, and how benefits and risks should be shared. These agreements are part of responsible AI governance, not a separate administrative task.

Public Health Example

A state health department wants to use AI to identify patterns in emergency department visit notes related to respiratory illness. Some hospitals serve Tribal communities, and the data include geography, facility names, and contextual notes that could allow inference about Tribal communities even if Tribal affiliation is not directly recorded.

The project team initially views the data as a statewide surveillance dataset.

Before model development begins, the agency pauses to determine whether Tribal consultation is needed and whether existing data agreements permit AI-supported analysis. The agency engages Tribal public health representatives, legal counsel, privacy officers, data stewards, and governance reviewers. The project is revised to define permissible uses, prohibit inference of Tribal affiliation, restrict vendor access, require Tribal review of community-level outputs, and establish a process for reporting findings back to participating Tribal partners.

Technical, Programmatic, and Operational Deep Dive

AI project teams should begin with a sovereignty impact review. This review asks whether the project uses data from Tribal citizens, Tribal programs, Tribal lands, Tribal-serving facilities, Tribal partners, or communities where outputs could affect Tribal interests. It should also ask whether geography, small numbers, service patterns, names, or contextual information could be used to infer Tribal affiliation or community characteristics.

Consultation and agreement development should address the full AI lifecycle. This includes data collection, cleaning, labeling, linkage, preprocessing, feature selection, model development, validation, deployment, monitoring, publication, reuse, and retirement. Agreements should also address whether AI tools may use external platforms, whether vendors can access data, and whether prompts or outputs become records that require review.

Cultural humility is essential. Staff should approach Tribal partnership with respect for sovereignty, history, community priorities, and the limits of their own knowledge. Cultural competence training may help, but it does not replace relationship-building, listening, formal consultation, or adherence to Tribal laws and review processes.

Risks, Failure Modes, and Guardrails

A significant failure mode is treating Tribal data as ordinary state or local administrative data. This can result in AI projects that ignore Tribal authority, bypass Tribal review, or use data for purposes that were never agreed upon. Guardrails include early sovereignty screening, formal consultation, review of data agreements, and Tribal approval before AI development begins.

Another risk is indirect identification or inference. AI systems may infer Tribal affiliation, community characteristics, or sensitive patterns from geography, facility use, small cell sizes, language, service context, or linked data. Guardrails include prohibiting inference of Tribal affiliation, limiting geographic granularity, reviewing small-number outputs, restricting linkage, and requiring Tribal review of community-level findings.

A third risk is using external AI platforms without explicit approval. Uploading Tribal health data, transcripts, notes, or community feedback into an external AI tool can create storage, reuse, access, and jurisdictional concerns. Guardrails include approved environments, vendor restrictions, data minimization, prompt/output controls, and explicit agreement language before any AI platform is used.

Application to AI-Supported Workflows

An AI-supported workflow involving Tribal data should include a consultation checkpoint before data preparation begins. The workflow should define who determines whether Tribal consultation is needed, who contacts Tribal partners, what documentation is required, and what approvals must be obtained. It should also define how changes to the AI use case will be reviewed after approval.

Workflows should also include ongoing accountability. Tribal partners may need opportunities to review outputs, interpret findings, request corrections, receive results, and decide whether continued use is appropriate. Governance should not end when a data sharing agreement is signed; it should continue through monitoring, reporting, and lifecycle decisions.

Reflection Questions

Could the proposed AI project affect Tribal Nations or AI/AN communities even if Tribal affiliation is not directly recorded?

What approvals, agreements, or review bodies must be consulted before data are used?

How will Tribal partners retain authority over interpretation, sharing, and reuse of project outputs?

Practical Exercise

Develop a Tribal consultation and data sharing agreement planning checklist for a fictional AI project. Choose a use case such as surveillance text analysis, community health needs assessment summarization, resource allocation modeling, or program evaluation involving data that may affect Tribal communities. Do not use real Tribal data or name a specific Tribal Nation unless the example is fully fictional and clearly labeled.

Your checklist should identify the data involved, possible Tribal interests, consultation triggers, review bodies, agreement topics, platform restrictions, output review needs, benefit-sharing considerations, and unresolved questions for legal, privacy, Tribal, and governance review.

Example: A fictional project proposes AI-assisted analysis of emergency preparedness survey comments from a region that includes Tribal communities. The checklist notes that consultation is needed before analysis, external AI platforms are not allowed unless approved, outputs should not identify small communities, and Tribal partners should review interpretation and dissemination plans before findings are shared.

Expected Artifact or Evidence

Tribal Consultation and AI Data Sharing Planning Checklist

List of unresolved review questions and approval needs

Knowledge Check

- 1. What is the most important first step after completing the Tribal Consultation and Data Sharing Agreements for AI Projects module?
- 2. Which practice best supports responsible AI use in public health?
- 3. Which statement best reflects the risk or guardrail for this module: A significant failure mode is treating Tribal data as ordinary state or local administrative data. This can result in AI projects that ignore Tribal authority, bypass Tribal review, or use data for purposes that were never agreed upon. Guardrails include early sovereignty screening, formal consultation, review of data agreements, and Tribal approval before AI development begins.
- Another risk is indirect identification or inference. AI systems may infer Tribal affiliation, community characteristics, or sensitive patterns from geography, facility use, small cell sizes, language, service context, or linked data. Guardrails include prohibiting inference of Tribal affiliation, limiting geographic granularity, reviewing small-number outputs, restricting linkage, and requiring Tribal review of community-level findings.
- A third risk is using external AI platforms without explicit approval. Uploading Tribal health data, transcripts, notes, or community feedback into an external AI tool can create storage, reuse, access, and jurisdictional concerns. Guardrails include approved environments, vendor restrictions, data minimization, prompt/output controls, and explicit agreement language before any AI platform is used.
- 4. When should a staff member escalate an AI-related concern?
- 5. What counts as stronger completion evidence for a training module?

References and Resources

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